Prosecution Service of Ukraine

OFFICE OF THE PROSECUTOR GENERAL

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USREOU Code 00034051

12 December 2025 No. 10/1/1-4939-17 To No. _____ dated _____

To Vladyslav Serhiyovych Miftakhutdinov
22 Rybalska St., BC "Bashta 5",
Entrance 13, 1st Floor, Kyiv, 01011

The prosecutor, within the scope of authority, has considered Your motion dated 9 December 2025 No. 20251209/1 in the interests of Oleksandr Boguslayev in criminal proceeding No. 22017000000000272 dated 6 July 2017 on the determination by the prosecutor of the investigative jurisdiction of this criminal proceeding to the National Anti-Corruption Bureau of Ukraine.

Following the results of consideration of the specified motion, I inform you of the refusal to satisfy it and send the corresponding ruling.

Annex: copy of the ruling on refusal to satisfy the motion, on 2 sheets.

Prosecutor of the First Division of the Department for Organization and Procedural Guidance of Pre-Trial Investigation and Maintenance of Public Prosecution in Criminal Proceedings of Security Bodies of the Department for Supervision over Compliance with Laws by Security Bodies

Oleksandr SAFARYAN

Офіс Генерального прокурора
12.12.2025 №10/1/1-117743ВИХ-25
10/1/1-4939-17

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No. _____ To No. _____ dated _____

RULING
on refusal to satisfy the motion

City of Kyiv "12" December 2025

The prosecutor of the first division of the department for organization and procedural guidance of pre-trial investigation and maintenance of public prosecution in criminal proceedings of security bodies of the Department for supervision over compliance with laws by security bodies of the Prosecutor General's Office Safaryan O.E., having examined the materials of criminal proceeding No. 22017000000000272 dated 6 July 2017,

ESTABLISHED:

The Prosecutor General's Office received a motion dated 9 December 2025 No. 20251209/1 from attorney Vladyslav Miftakhutdinov in the interests of Oleksandr Boguslayev in criminal proceeding No. 22017000000000272 on the determination by the prosecutor of the investigative jurisdiction of this criminal proceeding to the National Anti-Corruption Bureau of Ukraine.

In the course of its consideration, it was established that on 6 July 2017, investigators of the Main Investigation Directorate of the Security Service of Ukraine initiated a pre-trial investigation in criminal proceeding No. 22017000000000272 on the grounds of a crime provided for by Article 113 of the CC of Ukraine, assigned to the investigative jurisdiction of the security investigation bodies.

During the investigation, investigators of the security bodies revealed a number of other crimes committed both by officials of JSC "Motor-Sich" and by other persons, and prosecutors made decisions on joinder under twenty-seven episodes of criminal activity initiated under various parts of Articles 111, 111², 113, 114¹, 190, 191, 209, 212, 233, 258³, 219, 333, 358, 364 of the CC of Ukraine.

Following the investigation of these criminal offenses, from 2021 to 2024 charges were brought against Volodymyr Pryadko under Article 367 of the CC of Ukraine, Petro Zaruba under Article 258³ of the CC of Ukraine, Petro Kononenko under Article 258³ of the CC of Ukraine, Vyacheslav Boguslayev under Articles 111¹, 111², 114¹, 258³ of the CC of Ukraine, and Oleh Dzyuba under Articles 111¹, 111², 258³ of the CC of Ukraine, with subsequent severance of the materials of pre-trial investigation regarding these persons and adoption of final decisions on submission to court.

By investigators of the Main Investigation Directorate of the Security Service of Ukraine, since 24 January 2024 the pre-trial investigation of the specified criminal proceeding is conducted as part of a joint investigation team (JIT) with the French Republic and the Principality of Monaco regarding the facts of legalization on the territory of the European Union of USD 650 million received by Oleksandr Boguslayev as a result of the sale of shares of JSC "Motor Sich" unlawfully obtained by Vyacheslav Boguslayev.

Based on the evidence obtained by the joint investigation team, on 28 April 2025 Vyacheslav Boguslayev was notified of suspicion of misappropriation of shares of JSC "Motor Sich" in especially large amounts (Part 5 of Article 191 of the CC of Ukraine) with subsequent legalization (laundering) of proceeds from the unlawful

sale of these shares to citizens of the PRC by prior conspiracy with his son Oleksandr Boguslayev (Part 3 of Article 209 of the CC of Ukraine), who was notified of suspicion under Part 3 of Article 209 of the CC of Ukraine on the territory of the Principality of Monaco by members of the JIT on 30 April 2025.

The criminal offenses provided for by Part 5 of Article 191 of the CC of Ukraine and Part 3 of Article 209 of the CC of Ukraine were detected specifically during the investigation by investigators of security bodies of a number of criminal offenses within their investigative jurisdiction in criminal proceeding No. 22017000000000272.

Furthermore, in this same criminal proceeding, on 11 July 2019 the Prosecutor General had already made a decision to entrust the conduct of pre-trial investigation to investigators of the Main Investigation Directorate of the Security Service of Ukraine on the basis of Part 5 of Article 36 of the CPC of Ukraine due to its inefficiency.

Currently, pre-trial investigation is conducted not only regarding Vyacheslav Boguslayev and Oleksandr Boguslayev under Articles 191 and 209 of the CC of Ukraine, but also regarding the facts of commission of crimes provided for by various parts of Articles 111, 111^{1}, 111^{2}, 113, 114^{1}, 190, 191, 209, 212, 219, 233, 258^{3}, 333, 358, 364 of the CC of Ukraine.

Vyacheslav Boguslayev, at the time charges were brought against him under Articles 111^{1}, 111^{2}, 114^{1}, 258^{3} of the CC of Ukraine and notification of suspicion under Articles 191, 209 of the CC of Ukraine, did not hold the status of a People's Deputy of Ukraine.

The completion of the commission of the criminal offense incriminated against Vyacheslav Boguslayev provided for by Article 191 of the CC of Ukraine, as well as the commission of the criminal offense provided for by Article 209 of the CC of Ukraine, occurred after JSC "Motor Sich" had completely left state ownership.

Therefore, the decision to entrust the conduct of pre-trial investigation in this criminal proceeding (which is made taking into account the provisions of the CPC of Ukraine on investigative jurisdiction) has already been made, and grounds for determining another investigative jurisdiction have not been established.

At the same time, the attorney in the motion requests to determine investigative jurisdiction in the criminal proceeding. Such a decision is made in the form of a ruling and does not relate to investigative or procedural actions, the right to file motions for the conduct of which is granted to the defense under the provisions of Article 220 of the CPC of Ukraine.

On the basis of the above, guided by the requirements of Articles 36, 110, 220 of the CPC of Ukraine,

RULED:

1. To refuse attorney Vladyslav Miftakhutdinov, acting in the interests of suspect Oleksandr Boguslayev in criminal proceeding No. 22017000000000272, the satisfaction of the motion dated 9 December 2025 No. 20251209/1 on determination of investigative jurisdiction of this criminal proceeding to the National Anti-Corruption Bureau of Ukraine.

2. To send a copy of the ruling to attorney Vladyslav Miftakhutdinov.

The ruling may be appealed during pre-trial investigation to the investigating judge in the manner provided for by Articles 303–306 of the CPC of Ukraine, within ten days from the day the person receives a copy of the ruling.

Prosecutor of the first division of the department for organization and procedural guidance of pre-trial investigation and maintenance of public prosecution in criminal proceedings of security bodies of the Department for supervision over compliance with laws by security bodies



Oleksandr SAFARYAN